

occupiers of lands are to be ascertained shall be such date, not less than two nor more than four months before the date of the election, as the drainage authority may fix for that purpose.

(3) In this Act—

“Enactment” includes any public, general, local or private Act and any order or award made under any Act;

“Drainage rate” means any rate which is assessed under any commission of sewers or in respect of any drainage, wall, embankment or other work for the benefit of land; and

“Gross annual value for income tax purposes” means the annual value for the time being in force for the purposes of income tax under Schedule A. of the Income Tax Act, 1918, as amended by any subsequent enactment.

Short title
and extent.

2.—(1) This Act may be cited as the Land Drainage Act, 1929.

(2) This Act shall not extend to Scotland or Northern Ireland.

CHAPTER 9.

An Act to indemnify certain persons from any penal consequences which they may have incurred by sitting and voting as members of the Commons House of Parliament while holding the office of Under Secretary of State, and to render valid the election of such persons.

[6th December 1929.]

21 & 22 Vict.
c. 106.

7 & 8 Geo. 5.
c. 51.
16 & 17 Geo.
5. c. 18.

WHEREAS by section four of the Government of India Act, 1858, as amended by section eleven of the Air Force (Constitution) Act, 1917, and section three of the Secretaries of State Act, 1926, it is provided that any six of His Majesty's Principal Secretaries of State

"
for the time being and any six of the Under Secretaries for the time being to His Majesty's Principal Secretaries of State may sit and vote as members of the Commons House of Parliament, but that not more than six such Principal Secretaries and six such Under Secretaries shall sit as members of the Commons House of Parliament at the same time :

And whereas by section one of the House of Commons 27 & 28 Vict.
(Vacation of Seats) Act, 1864, as amended by section c. 34.
eleven of the Air Force (Constitution) Act, 1917, and
section three of the Secretaries of State Act, 1926, it is
provided that if at any time when six of the Under
Secretaries for the time being to His Majesty's Principal
Secretaries of State are members of the Commons House
of Parliament any other person, being a member of that
House, accepts the office of Under Secretary of State to
any of the said Principal Secretaries, the election of that
person shall be void :

And whereas Alfred Short, Esquire, Hugh Dalton,
Esquire, Arthur Augustus William Harry Ponsonby,
Esquire, William Lunn, Esquire, Frederick Montague
Esquire, Thomas Drummond Shiels, Esquire, and Thomas
Johnston, Esquire, were, at some time between the date
on which they were returned as members to serve in the
present Parliament and the commencement of the present
Session of Parliament, appointed to be Under Secretaries
to His Majesty's Principal Secretaries of State :

And whereas all the said seven Under Secretaries,
being respectively members of the Commons House of
Parliament, have since the commencement of the present
Session of Parliament continued at the same time to sit
and have from time to time voted as such members :

And whereas it is not possible to ascertain which of
the said seven persons last accepted the office of Under
Secretary :

And whereas under and by virtue of the said recited
enactments or otherwise the said Under Secretaries or
some or one of them may have incurred divers penal
consequences :

And whereas the infringement of the said enactments having occurred through inadvertence, it is fit and proper that they the said Alfred Short, Hugh Dalton, Arthur Augustus William Harry Ponsonby, William Lunn, Frederick Montague, Thomas Drummond Shiels and Thomas Johnston should be indemnified from all penal consequences of their said acts and that their seats should not be vacated by reason only of such acts :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Indemnity
for Under
Secretaries
of State
named in
Act.

1. The said Alfred Short, Hugh Dalton, Arthur Augustus William Harry Ponsonby, William Lunn, Frederick Montague, Thomas Drummond Shiels and Thomas Johnston, shall be and each and every of them is hereby freed, discharged and indemnified from and against all penalties, forfeitures, incapacities and disabilities whatsoever, if any, incurred or to be incurred by them or any or either of them by reason of their said acts.

Provision as
to members
elected
previously
to passing
of this Act.

2. No one of the said seven persons hereinbefore mentioned shall be treated as having vacated his seat in the Commons House of Parliament by reason only that at some time previously to the passing of this Act the number of members of that House holding the office of Under Secretary of State exceeded the number limited by law.

Short title.

3. This Act may be cited as the Under Secretaries of State Act, 1929.
